

**CV-25-011430 CHAVEZ, KARINA vs CHAVEZ, RAMIRO – Defendants
Ramiro Chavez et al.'s Demurrer to Complaint - SUSTAINED, with leave to
amend.**

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Based on the arguments set forth in the moving papers, the Court finds that the Complaint fails to sufficiently allege the claims suggested therein. (Code Civ. Proc. § 430.10(e).) In addition, the Court finds that much of the pleading is unintelligible as to the facts and theories alleged, and Plaintiff failed to comply with the requirements of Ca. Rules of Ct., rule 2.112 in that regard, rendering the Complaint uncertain. (Code Civ. Proc. § 430.10(f).) The Court further notes that Plaintiff's untimely opposition fails to substantively address the defendants' legal arguments herein. Lastly, the Court notes that a substantial portion of Plaintiff's Complaint appears to arise from matters that have been addressed in a pre-existing family law action (#FL21-2757), raising serious questions about this Court's jurisdiction to address such claims. Therefore, the demurrer is SUSTAINED in its entirety. Plaintiff shall submit her amended pleading within 20 days. The following are the tentative rulings for cases calendared before Judge David Hood in Department 24:

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